

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 17, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 24CV03006

LOPEZ v. GOMEZ

**DEFENDANT TOBIA’S MOTION TO COMPEL DEPOSITION OF
DEFENDANT GOMEZ**

The motion to compel is granted but the request for sanctions is denied.

I. COMPLAINT AND MOTION

This is a motor vehicle accident case filed by plaintiffs. The complaint asserts that defendant Jhonys Gomez (“Gomez”) was under the influence of alcohol and other substances when driving eastbound on Highway 129. He allegedly attempted to pass a vehicle in front of him and, in doing so, drove into the westbound traffic lane, striking head-on with plaintiffs’ vehicle. The vehicle directly behind plaintiffs also struck them, driven by defendant Tobia (“Tobia”). The complaint alleges defendant, Castillo, owned and insured the vehicle driven by Gomez. Defendant Guerrero owned and insured the vehicle driven by Tobia. Gomez, through his counsel, answered the complaint on March 12, 2025.

Tobia brings this motion to compel Gomez to appear at deposition and for an award of monetary sanctions in the amount of \$1,285.00 against him. On February 27, 2026, Tobia served a Notice of Taking of Deposition of Gomez, with the deposition to take place on March 17, 2026. (Ex. A to Decl of Vierra.) A paralegal advised Tobias’s counsel that Gomez’s attorney was unavailable that date. Counsel for Tobia and Gomez then exchanged emails about trying to reschedule the deposition, and problems contacting Mr. Gomez. On April 23, 2026, counsel for Gomez wrote to counsel for Tobia, conveying that their client was not responding to communications from them. (Decl. of Vierra at ¶ 8, ex. B.)

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In opposition, counsel for Gomez argues the motion should be denied because Tobia did not show that Gomez willfully did not appear for his deposition – there is no certificate of non-appearance. The opposition characterizes the failure to appear as a scheduling issue and that because Gomez cannot be reached, he did not know about this deposition. Counsel states he has retained a private investigator to locate Gomez. (Decl. of Fleming at ¶¶ 5-6.)

In reply, Tobia asserts that because the attorneys agreed they “adequately met and conferred for the purposes of this motion, Gomez waived any requirement for Defendant Tobia to actually attend the deposition and obtain a certificate of a non-appearance.” (Reply at p. 2.)

II. LEGAL STANDARDS AND DISCUSSION

Code of Civil Procedure section 2025.280, subdivision (a) provides that “[t]he service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action ... to attend and to testify” Section 2025.240, subdivision (a) states, in part, that “[i]f after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” Subdivision (b) of this section states a motion under subdivision (a) shall contain both of the following:

“(1) The motion shall set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code of Civ. Proc. § 2025.450, subd. (b).)

Here, defendant Tobia noticed Gomez’s deposition for March 17, 2026, and served the notice on Gomez’s counsel on February 27, 2025. Counsel for Gomez was not available on March 17. The parties continued their meet and confer efforts. Eventually, Gomez’s counsel conveyed that Gomez was not responding to their messages. Counsel for Tobia and Gomez agreed that they had adequately met and conferred and counsel for Tobia informed Gomez’s

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counsel that he would seek a court order compelling Mr. Gomez's deposition and request sanctions against him individually. (Ex. B to Decl. of Vierra.)

Gomez does not cite any case law or statute that requires a certificate of non-appearance to support a motion to compel. Here, it appears that it would have been futile for counsel for Tobia to appear on March 17 (or another date) because Mr. Gomez was and is unreachable, according to his own counsel. Therefore, the motion to compel is granted. Defendant Gomez is directed to appear for his deposition at a mutually agreed upon date within the next 45 days.

Code of Civil Procedure section 2025.450, subdivision (g) states that the court shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent, unless the court finds that the one subject to sanction acted with substantial justification or that other circumstance would make the imposition of sanctions unjust. The Court declines to award sanctions against Gomez at this time because he was not aware of the deposition or his requirement to attend because his counsel cannot reach him. Second, the Court notes that Mr. Gomez was served via substituted service, so it is not clear if he is even aware of the case filed against him.

No. 23CV01708

SEASCAPE RESORT OWNERS' ASSN. v. SEASCAPE RESORT, et al.

DEFENDANT SEASCAPE RESORT LTD.'S DEMURRER TO AND MOTION TO STRIKE POWER WEST PROPERTIES, INC.'S FIRST AMENDED COMPLAINT IN INTERVENTION

The Court needs additional time to review the papers and provide a ruling. Matter will be reset at the hearing.

DEFENDANT SEASCAPE RESORT LTD.'S DEMURRER TO AND MOTION TO STRIKE FIRST AMENDED COMPLAINT IN INTERVENTION BY INTERVENORS CAPORN, WALLIS, AND MANRAO

The Court needs additional time to review the papers and provide a ruling. Matter will be reset at the hearing.

PLAINTIFF STACIE POWER'S MOTION TO BE RELIEVED

The Court grants the unopposed motion and will sign the order submitted by counsel.